

The National Institute of Mental Health and Neuro-Sciences, Bangalore Rules, 2013

Source: <https://indiankanoon.org/doc/38474091/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with
PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

Union of India - Act

The National Institute of Mental Health and Neuro-Sciences, Bangalore Rules, 2013

UNION OF INDIA

India

The National Institute of Mental Health and Neuro-Sciences, Bangalore Rules, 2013

Rule THE-NATIONAL-INSTITUTE-OF-MENTAL-HEALTH-AND-NEURO-SCIENCES-BANGALORE-RULES-2013 of
2013

Published on 29 November 2013

Commenced on 29 November 2013

[This is the version of this document from 29 November 2013.]

[Note: The original publication document is not available and this content could not be verified.]

The National Institute of Mental Health and Neuro-Sciences, Bangalore Rules, 2013

Published vide Notification No. G.S.R. 759(E), dated 29th November, 2013

Ministry of Health and Family Welfare

(Department of Health and Family Welfare)

G.S.R. 759(E). - In exercise of the powers conferred by section 30 of the National Institute of Mental Health and Neuro-Sciences, Bangalore Act, 2012 (38 of 2012), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the National Institute of Mental Health and Neuro-Sciences, Bangalore Rules, 2013.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the National Institute of Mental Health and Neuro-Sciences, Bangalore Act, 2012 (38 of 2012);

(b)

"Director" means the Director of the Institute;

(c)

"Institute" means the National Institute of Mental Health and Neuro-Sciences, Bangalore;

(d)

"President" means the President of the Institute;

(e)

"section" means a section of the Act.

3.

Nomination of representatives of non-medical scientists and medical faculties.

(1)

For the purpose of nomination of members under clause (j) of sub-section (1) of section 5 of the Act, the Central Government, in addition to one non-medical scientist representing Indian Sciences Congress Association, shall nominate another six persons having due regard to the furtherance and objects of the Institute:

Provided that three persons shall be nominated from medical scientists, out of which one shall be from any Mental Health and Neuro-Sciences Institute under Central Government, other than National Institute of Mental Health and Neuro-Sciences, Bangalore, and two from any recognised Institutes of repute in disciplines pertaining to mental health and neuro sciences:

Provided further that another three scientists nominated shall be one each from the disciplines of biological; behavioural and physical sciences, of repute, from any recognised University.

(2)

For the purpose of nomination of members under clause (k) of sub-section (1) of section 5 of the Act, the Central Government shall nominate four representatives of medical faculties from Indian Universities of which one shall be from the National Institute of Mental Health and Neuro-Sciences, Bangalore and the representatives so nominated shall be from different disciplines pertaining to mental health and neuro sciences.

4.

Filling up of casual vacancies.

- Any casual vacancy in the office of a member, other than ex officio member, shall be filled by nomination or election, as the case may be, in accordance with the provisions of section 5 of the Act.

5.

Powers and functions of the President.

- The President shall -

(i)

perform such duties and exercise such powers for the conduct of business of the Institute, as may be vested in him by the Institute;

(ii)

have powers to review periodically the work and progress of the Institute;

(iii)

convene meetings of the Institute and preside over every meetings;

(iv)

act as Chairperson of the Governing Body; and

(v)

offer advice to other members of the Society, if needed.

6.

Allowances of President, Vice-President and Members.

(1)

The President, Vice-President or any member of the Institute shall not be entitled to any allowance or other remuneration and shall, however, draw the travelling and daily allowances, if any, to which he may be eligible under the regulations framed under section 31 of the Act.

(2)

Nothing in sub-rule (1) shall apply to the Director who may draw the salary and allowances attached to the post of Director.

7.

Standing Committees.

(1)

There shall be constituted a Standing Finance Committee, which shall include the member not below the rank of Joint Secretary representing the Ministry of Finance.

(2)

The Institute may also constitute an Academic Committee, an Estate Committee, a Standing Selection Committee, Hospital Management Committee, Planning and Monitoring Committee, Grievance Redressal Committee, Rehabilitation Committee or any other standing or ad hoc Committees in accordance with sub-section (5) of section 11 of the Act.

(3)

The following matters shall be referred to the Standing Finance Committee, which shall consider them and make its recommendations thereon, namely:-

(a)

annual accounts showing the receipts and expenditure of the Institute together with the audit report thereon;

(b)

budget estimates showing the estimated receipts and expenditure of the Institute;

(c)

all proposals for the creation of new post(s);

(d)

all financial matters pertaining to the Institute other than acceptance of tenders; and

(e)

all matters relating to the invitation and acceptance of tenders above rupees five crore.

8.

Creation of posts and appointments made thereto.

(1)

The Institute may create posts, subject to specific provision in the budget, and the instructions of the Central Government issued from time to time, on such pay band and grade pay or pay scale as are approved by the Central Government, classify them into grades and specify their designations:

Provided that no post above the Additional Professor level shall be created except with the prior approval of the Central Government:

Provided further that while exercising the powers for creation of posts as also for observing economy measures, the instructions issued by Central Government from time to time shall be adhered to.

(2)

The appointment to the post of Director shall be made by the Institute with the prior approval of the Central Government.

(3)

In the event of the Director proceeding on leave or resigning or the post falling vacant in any other eventuality and till such time a new Director is appointed, the President may appoint the senior most Professor from among the medical faculty to look after the functions of the Director for a period not exceeding six months:

Provided that the Institute may appoint, for reasons to be recorded in writing, any person from among the medical faculty as Director for a period not exceeding six months:

Provided further that if the period of such appointment is likely to exceed six months, prior approval of the Central

Government shall be taken before granting extension of such appointment beyond six months.

(4)

The method of recruitment, age-limit, educational qualifications and other matters relating to appointment to various posts, and the conditions of service in the Institute shall be as specified in the National Institute of Mental Health and Neuro-Sciences, Bangalore Regulations, 2013.

(5)

The employees of National Institute of Mental Health and Neuro-Sciences Deemed University shall automatically become the employees of the new Institute of national importance and their pay and allowances and other service conditions shall continue to be the same.

9.

Budget Estimates.

- The annual budget showing the estimated receipts and expenditure of the Institute shall be prepared in two parts as specified below and they shall be in such form as may be laid down by the Central Government and shall be submitted to it in triplicate by the date stipulated by the Central Government, namely:

Part I ? relating to Non-plan expenditure, and

Part II ? relating to Plan expenditure.

10.

Deposits into and withdrawals from Fund of Institute.

(1)

All moneys credited to the Fund of the Institute shall be deposited in any branch of a nationalised bank, at Bangalore.

(2)

The said Fund shall be operated by the Director and withdrawals from the Fund shall be made by cheques signed by the Director or an officer of the Institute duly authorised by the Director on his behalf.

(3)

All bills for payment shall be pre checked by an Accounts Officer of the Institute.

11.

Annual Statement of Accounts.

(1)

The annual statement of accounts including the balance sheet of the Institute shall be in such form as may be laid down by the Central Government.

(2)

The statements pertaining to each financial year ending 31st day of March together with the audit report thereon shall be forwarded to the Central Government, together with such number of spare copies thereof as may be required by the Central Government from time to time, by such time as may be laid down by the Central Government.

12.

Annual Reports.

(1)

The annual report referred to in Section 20 shall relate to the financial year ending on the 31st day of March and shall be submitted to the Central Government, together with such number of copies as may be required by the Central Government, by such time as may be laid down by the Central Government.

13.

Returns.

- The Institute shall furnish to the Central Government returns and information in such form and manner as may be required by the said Government.

Related AI tags, queries and research notes

Translation